

in *Ortmann v. Adecco, USA, Inc.*, 19CV355315], p. 3:5-7 [“Here, Google presents evidence that it did not employ Ms. Ortmann and urges that this will be an important threshold issue in the case governing her standing to bring PAGA claims against it.”].) In *Stafford v. Dollar Tree Stores, Inc.* (E.D.Cal. Nov. 20, 2014, No. 2:13-cv-1187 KJM CKD) 2014 U.S.Dist.LEXIS 163458 (*Stafford*), the Court of Appeal alluded to potential problems with discovery that could arise due to the pendency of two class action suits involving the same defendant in a different court, noting that the defendant claimed that it would have difficulty interviewing the unrepresented class members in one of the class actions. (*Id.* at *5-6.)

Here, outside of the nature of the PAGA claims themselves, which are admittedly outside the norm, Defendant points to nothing to distinguish this case from any other representative PAGA action. Defendant contends that discovery will be expensive and that Plaintiff alleges eight separate violations of the Labor Code. But, Defendant provides no evidence regarding the quantum of the expense or any reason to believe that discovery will be more complicated or burdensome than in any other PAGA case. (See Defendant’s Request for Judicial Notice, Ex. C [Order filed February 9, 2021 in *Cassell v. Google*, 17CV319202] [“Here, Google has shown through admissible, unrebutted evidence that considerable time and money may be saved if the issue of Mr. Cassel’s standing for his PAGA claims is resolved before broad discovery commences on the PAGA claims. Google claims without contradiction that the number of employees who might come within Mr. Cassel’s definition of ‘PAGA-aggrieved employees’ number in the thousands (perhaps over 10,000 employees). [Citation.] To undertake discovery concerning this many employees will be expensive and time-consuming, and that expense might be avoided if it turns out Mr. Cassel lacks standing.”]; see also *Stafford, supra*, 2014 U.S.Dist.LEXIS 163458, at *12 [“in light of the number of potential aggrieved employees, judicial economy favors deferring the representative portion of the PAGA claim until plaintiff’s status as an aggrieved employee with the right to bring this action is established”].)

The motion for bifurcation and the alternative motion for discovery sequencing, which is based on the same arguments, are DENIED.

XII. CONCLUSION

The motion for judgment on the pleadings is GRANTED WITH 20 DAYS’ LEAVE TO AMEND.

The motion for bifurcation and the alternative motion for discovery sequencing are DENIED.

The Court will prepare the final order.